

STEPHEN H. BRANCH'S

ALLIGATOR.

VOLUME I

No. 17

AUGUST 14, 1858

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BRANCH'S ALLIGATOR, VOL. 1 NO. 17, AUGUST 14, 1858 ***

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STEPHEN H. BRANCH'S
ALLIGATOR.

Volume I.—No. 17. SATURDAY, AUGUST 14, 1858. Price 2 Cents.

STEPHEN H. BRANCH'S ALLIGATOR.

TRIAL OF STEPHEN H. BRANCH, FOR LIBEL.

For want of room we omit the evidence and insert summing up of counsel for defendant, remarks of Mr. Branch, sentence by the Recorder and opinions of the Press:

[From the N. Y. Express.]

SUMMING UP FOR DEFENCE.

Shortly after the opening of the Court, Mr. Ashmead rose and commenced to sum up for the defence. He opened by pointing out the responsibilities of the Jury, stating that should they find a verdict in favor of the prosecution, it would establish a precedent which would strike a serious blow at the liberty of the citizen. He characterized the prosecution as one of

the most extraordinary character. In commenting on the experience of the opposing counsel, he said he remembered a comment by a most eminent divine, on the words of Solomon, "I have never seen the righteous forsaken, nor his seed begging their bread," namely, that what Solomon had not seen he had. He spoke strongly against the fact that the prosecution had originated with the Grand Jury, instead of taking the action before a committing magistrate, having a preliminary examination. Here was a citizen, humble if they pleased, on one side, while on the other was the Mayor of the greatest city in the New World, and these officers of the Grand Jury, forgetting that in this republic all should be treated alike, encroached upon the liberty of this citizen by stepping out of their usual course. Should the jury adopt the precedent of convicting a man under such circumstances, then God help the liberty of the citizen; but the consequences would rest upon the heads of them and their children. [Mr. Ashmead here read extracts from the opinions of eminent Judges, showing that a prisoner had a right to a preliminary examination before the case could go before the Grand Jury.] But this unfortunate man was not so served; he knew nothing of the accusation, nor was he brought face to face with his powerful accusers. Were this man immaculate, he stood, under these circumstances, subject to all the lightning elequence of the opposite side, and was not able to do as was his right, namely, bring an action for damages against his accusers, because the responsibility rested with the public prosecutor.

Mr. Ashmead continued to read from the same book, contending that no indictment should be smuggled into a Grand Jury room as this had been. The Mayor, or the Governor, or His Honor on the Bench had no right to adopt a system denied to the meanest citizen; and in their anxiety to punish crime, they should take care that they did not strike a blow at the liberty of the community, nor should Judicial Legislation take away the rights of the citizen. The Jury should take care that this man was not made a victim through the variation of the Grand Jury from the usual course; but they should follow the example of English Grand Juries, and take care how they struck a blow at Constitutional rights. He next referred to the noble speech of Robert Emmet, before Lord Norbury, who several times attempted to stop the criminal when speaking before he was sentenced. He said: "Though I am to be sacrificed, I insist that all the forms be gone through." Let the Jury, then do as Emmet did to Lord Norbury—make the Mayor go through the forms. (Here McKeon smiled.) And though the District

Attorney should smile at these remarks, this matter was serious, and a laugh and a sneer were not an argument. He referred to the case of the libel of MacIntosh, where, it was asserted, there was on one side a Napoleon, the ruler of the greatest empire in the world, and on the other, as in this case, a poor and obscure citizen; yet in that case a British Jury taught future generations a lesson, and showed an example which an American Jury should endeavor to follow.

Mr. Ashmead next read from the revised statutes, showing that an accused person should have a preliminary examination before being indicted, and contended that a great privilege had been taken from his client, and by this means a blow had been struck at the liberties of the citizen. He alluded to the fact that Mr. Draper had not been before the Grand Jury at all, and yet this poor man had been indicted for a libel on him; this was a proceeding which, if sanctioned by the Jury, would establish a perfect tyranny by breaking down all the safeguards of the law which surrounded the citizen. He insisted that the prosecution had taken away every privilege from this man, and environed him by a wall, so that he could not escape, by getting up this Trinity of indictments. These three indictments were united so that one should support the other. The Recorder had said that Mr. Draper was old enough to take care of himself, but wisdom didn't come with length of year, and certainly Simeon Draper was not bred in the school of Chesterfield, for he forgot common courtesy by saying the alleged libel was a lie. Mr. Ashmead then commented on the conduct of the prosecution in putting in only one half of the libel in the indictment, and keeping out that part which had a foundation in truth, which he said was a piece with the remainder of these proceedings. Such conduct struck a serious blow at our free institutions, and as Erskine said if such proceedings were to obtain, our halls of justice would be turned into altars, and the poor victim would be immolated at the shrine of persecution.

Mr. Ashmead then proceeded to explain the law of libel, contending that it was necessary that "malice" should be proved, in order to sustain an indictment for libel. He spoke of the law in England, which would not permit the truth to be given in evidence, and contrasted such with the laws of New York, which provided that if an article was published without malice, it was not libellous; for it permitted a reporter to publish the proceedings of a meeting or of a legislative body without holding him liable, provided it was proved that it had been published without malice.

The counsel then commented on the remark made by the Recorder relative to his taking no decisions but his own, and that Mr. Ashmead's points would not be fit for a Kamschatka Court, and proceeded to justify his own course in the matter.

The Recorder remarked that Mr. Ashmead must have forgotten his own observations, he had said that "a certain decision had been made by one of the Judges of this Court" and that caused his Honor to make the remark to which he had alluded.

Mr. Ashmead replied that it had been so ruled in this Court in the case of Coleman vs. Magoon, in 1818. The Counsell then pointed out the fact that Mayor Tiemann had testified that he had been spoken to on this subject nearly a year ago, and wanted to know why he had not then pursued the originator of these stories. This showed clearly that Branch did not originate the alleged libel, and that therefore there was no malice on his part.—He complained that the testimony for the defence had been entirely shut out by objections, and asked why the Mayor did not come in manfully and clear his skirts of these charges, without shielding himself under technicalities. He, however, did not pursue the originator of this story, but when this poor man who considered himself a sentinel upon the watch-tower of this great city, exposed what he considered to be corruption in high places, then the Mayor pounced upon him. Why did not the Mayor go into the civil court, as he could have done, and then this poor man could stand on an equal footing with him, and tell his own story? In God's name if they wanted a victim let them take him, but they should not condemn him without show of a trial. If a sacrifice was required Mr. Branch was ready to be immolated; but here was an extraordinary fact. Why did not Mayor Tieman bring forward the matron? He had seen her before witnesses. If this thing was done, no one knew it but his Excellency the Mayor, and this lady. No eye but that of the Omniscient One above, saw the act if it had occurred? Why, then, did he not bring this lady here, and then if she swore that it did not occur, there was an end of the matter. But they might ask, why did not he (Counsel) bring the lady? For a very sensible and legal reason, because, if he had brought her into Court, she would become his own witness, and he could not bring evidence to contradict her, whereas, if Mayor Tiemann had put her on the stand, and she had told her statement, then they could have cross-examined her and brought Evans and other witnesses to contradict her. If, therefore, the prosecution had examined her, and other evidence would have been

admitted which had been shut out, but by the course the prosecution had pursued half the defence was made non-effective. He admitted that what was acknowledged by the Mayor did not amount to proof, yet it was very extraordinary. The Mayor admitted that there was a friend who visited the lady whom he ordered should not be allowed on the island.—There was no impropriety shown in these visits; he came every Sunday, he behaved himself, and yet he was interdicted. Now there was other matrons there; they had friends, no doubt, and yet this lady was the only one selected for deprivation of her friend's society. This to say the least of it was very extraordinary. Another thing, the Mayor had lent this lady money, but he lent money to no other matron. Now this was curious, if he was simply friendly to this lady he would not prevent her other friends from coming to see her, or did he give this money to the lady, and give her the money for her torn dress to compensate her for interdicting her friend from visiting the island?

But this was not alone,—Mr. Draper suspended this lady, and the Mayor persuaded her to write an apologetic note, and so she got restored. Now this was a friend indeed a friend he was going to say that “sticketh closer than a brother” (laughter), but he allowed her to have no friend but himself, although one would suppose that a lone woman should be surrounded by friends. Now these little things loomed up curiously, but his honor was not content with being *her* friend, he was the friend of her boy? He said it was his duty to procure situations for boys; yes, certainly; but this boy was not then in New York at all—he was in the far West, and not under the control of the Alms House Governors at all. He had been sent safely away from the temptations of this great Metropolis: and yet the Mayor brought him back, and provided for him—proving himself the friend of the boy's mother in every way, except that of letting her other friend come on the island. The Mayor was willing to lend her money, to get her boy a situation, to get her friend, Waters, a situation, and to do everything for her except to allow her friend to see her. He did not say that this proved anything against Mayor Tiemann; he was an honorable and upright man, as far as Counsel knew; but these little circumstances looked suspicious, and it was curious that the Mayor had shut out the rest of the testimony. The whole case however showed that Mr. Branch had not fabricated these stories, and certainly did not publish them with malice; and therefore he ought to be acquitted. Mr. Ashmead then referred to an extraordinary conversation between Justice

Buller and Mr. Erskine, in a libel case, where the Jury returned a verdict of “guilty of publishing *ONLY*” the Judge wanted the word *only* left out, and Mr. Erskine defended the verdict, notwithstanding that the Judge threatened to proceed in another manner. Erskine replied that he knew his duty as an advocate, as well as His Lordship knew his as a Judge.

Mr. Ashmead then submitted several points,—upon which he argued,—namely: That if the libel was published with an honest motive, then the defendant was guiltless: that the Jury, in Libel cases were judges of the law as well as of the fact, they having the right and the sole right to determine what was and what was not a libel, and this was the law in England and Ireland, also. He contended that according to the Mayor’s testimony the base of the libel was true, and if so, he begged and pleaded that the Jury would not, for the sake of truth, for the sake of an innocent man, for the sake of a newspaper publisher, who did not fabricate what he wrote, for the sake of the liberty of the press, immolate this humble citizen. But, he concluded, if Branch must be immolated, he had only to say in the words of that immortal Irishman Curran:—

“If it be determined that because this man would not bow to power and authority, because he would not bow down to the golden calf and worship it, he should be cast in the fiery furnace, I do trust in God that there is a redeeming spirit in the constitution which will go with the sufferer through the flames and preserve him unhurt by the conflagration.”

Mr. Ashmead sat down amid a burst of applause, which was immediately checked. His speech which occupied about an hour and a half, was spoken of by several as one of the most brilliant specimens of logical eloquence which has been heard in this Court for years. It was listened to with breathless attention by the largest audience which had assembled inside those walls since the Huntingdon trial.

[*From the New York Sun.*]

STEPHEN H. BRANCH'S SPEECH.

My counsel has done well. He has made an effort of which I am proud, and of which your Honor ought to be proud.

The Recorder—I am, sir.

Branch—I am sorry that I have not prepared to address you. I came to this country thirty-five years ago, a poor boy. I got a clerk's situation at \$2 a week. Then I went to Leary's hat store, in Water Street. Afterwards I went to Harper's, then to the *New York American*, and afterwards to the *Evening Post*. Then I returned to Rhode Island, and went afterwards to Boston, Hartford, Springfield and New Haven, and worked at the printing business, and was the first compositor on the *Washington Globe*. and set up the first article on that paper, which was a comment on the conduct of General Jackson, from the pen of Amos Kendall. I then took a room with Edward Dodge, of Philadelphia, and roomed with him some time. My father sent me a letter from Providence, and procured for me a situation in the Post Office, and I was there four or five years. I became ambitious, and studied at nights. I studied with Thomas F. Carpenter. I left the Post Office, and continued my Greek and Latin studies. I returned to the Post Office, but such was my desire for learning that I went to Cambridge Law School, and studied under Judge Story. I mingled with Southern students, and spent much money. They were high-bloods, and I spent a dissolute winter. I came back, and went to Andover, where I resumed my studies in Greek and mathematics. I then left for Providence, and was unfortunate in my domestic life. I left Providence and went to Washington, where I got \$10 a week at the printing business. I went next to Columbia College, when I would take my basket of bread and butter, work all day at the job office, walk back to the College at ten o'clock at night, and study till daylight. I would then get to the office at seven in the morning. I lost my health in doing this, and was reduced to the verge of the grave. My father remained true to me, notwithstanding my domestic misfortunes. I came to New York, and saw an advertisement in a paper, that a teacher was wanted in Alabama.

I secured the situation, and afterwards went to Apalachicola, thence to Alabama, and taught school. I found they were cruel to slaves there. The lady on the plantation used to whip the slaves early in the morning; it disgusted me, and I went to New Orleans. My brother Albert printed the New Orleans *Times*. I advertised for a situation as teacher, and soon secured one. I remained there till my brother Albert died—no, I am mistaken, he did not die then. I came to New York, and had but little money left. I could not work at the printing business. My father sustained me in the sun and rain, although he was a man of limited means though of high position, for he was a Judge of Rhode Island. I went to Arthur Tappan, who introduced me to his brother Lewis. I told him that I wanted to teach colored scholars. I suppose you will call me a lunatic for that. I told him my qualifications, and he sent me to Mr. Van Rensselaer, under the *Journal of Commerce*. I taught a colored boy for him, for which he gave me my board. I lost my health, and finally—but I won't mention names—I taught a candidate for Alderman of the Fourteenth Ward. That was the first public man I ever taught in New York. There was a man named Gouraud, a Frenchman, a teacher of the art of memory. I found he was trying to humbug the public. I saw he was an impostor, and exposed him. He had secured the press and the people, and I exposed him. I attended his lectures, and saw there William Cullen Bryant, Horace Greeley, Judge Oakley, and all the leading men and women of the city. His system was an exploded system of the Sixteenth Century. I exposed him in various cities. I exposed him, and stopped him. He was denounced in Philadelphia. Through educating public men, I got into politics. There may be a desire to get me into prison as soon as possible, and so I will be brief.

The Recorder—There is no desire to get you into prison, Mr. Branch.

Branch—I taught the Aldermen till the California mania broke out, when I went to California. I wrote a letter to the New York *Herald*, about alligators on the Isthmus, which gave me the title of “Alligator.” I taught servants and public men. Alfred Carson wanted me to write his reports for him, which I did. In 1855, I got into the Matsell campaign. I pursued *him*. You all know the result. I went to Brandon, England, to find his birth-place, and I found it. Soon after I saw Carson, I found that the officers of this city were very corrupt. Carson asked me to write his reports. He informed me that the officers around the City Hall interfered with the affairs of the Fire Department. I advised him to resist it, I wrote his reports for some years, I

got through with the Frenchman, Gouraud. I got through with teaching public men and servants, and with the fire and Matsell campaign. I thought I would start the *Alligator*. I did, and *I don't regret it*. There is a gang of thieves around the City Hall, and your Honor knows it, and we all know it. I pursued them hard, days and nights for years, in defence of honesty, industry, and the tax-payers, rich and poor, but especially the poor, who go to corner groceries, barefooted, naked, who live in attics. I—a lunatic, so-called, have passed my days in their defence. Ask Carson; ask Harry Howard—I saw him here to-day—ask the editors, if I have not passed the midnight hours in their editorial habitations—if I have not been true to them, to Carson, and all for whom I professed friendship—to all whom I found advocating the cause of the poor tax-payers? Do I regret the establishment of the *Alligator*? No; and why? I have attacked thieves indiscriminately. Hitherto these men had reputation as public officers, and amid tears oftentimes, my shafts have fallen harmless. But now, I have struck at a dynasty which has existed in this city for thirty years, the Peter Cooper guild. He was Alderman in 1828, '29, and '40. Tiemann was Alderman in 1839, '44, '62, and '63. Through Denman, who was a pupil of mine, I first heard that Tiemann and Cooper were corrupt men.

The Recorder—Mr. Branch, I must stop you. You cannot be allowed to use such language In this Court.

Mr. Ashmead—Will your Honor remember the case of Lord Norbury, to which I drew your attention this morning?

Recorder—I remember Lord Norbury, and every other lord, but I cannot permit such language.

Branch—I will spare your feelings. Peter Cooper and his daughter I taught in his own house. He does not deny it; but, if I had taught my father, and was satisfied he was corrupt, I would trample him down. I have attacked the Mayoralty, and for that I am on my way to a prison. *Send me there*. I will walk with a firm step to my dungeon. Before God—before God, I declare with my hand on my heart, that this is the happiest moment of my life. What have I stolen? Whom have I murdered? What crime have I committed? I have pursued the plunderers of the masses, and for that you send me to a dungeon. You can desert me—the prosecution can oppress me, but God—but God will not desert me. Your prisoner is ready.

Stephen H. Branch's Alligator.

New York, Saturday, August 14, 1858.

IN MY CELL.

On either side of me are three murderers, and my cell has a murderer's lock. My bed is straw, with a blanket. I slept well last night, and had a good breakfast this morning, which my keeper kindly procured for me, and who has extended the kindness of a brother towards me, in obtaining every thing I desired for my comfort, and in permitting my friends to visit me. I have read all the daily papers; and to Horace Greeley, Doctor Frank Tuthill of the *Times*, and to James and Erastus Brooks, for their genial sympathy, I express my cordial gratitude. The *Courier & Enquirer* is silent, and that is preferable to denunciation, in my shackles and dungeon gloom. Bennett lashes me with the stings of a scorpion, who has fattened on libel and obscenity, and blasphemy, and black mail, from the dawn of his infamous editorial career. In his aged visions he often beholds the poor creatures whom his defamation hurled into premature graves. Halleck, of the *Journal of Commerce*, is brief but bitter in his comments on my alleged lunacy. The *Daily News* I have not seen, but I learn that its anathema of me is terrible, and has a bulletin against me written in letters of blood. Its former editor, Mr. Auld, is the Mayor's Clerk, which accounts for the severe comments of the *News*. But the article in the *Sun* grieved me more than all the phillippics of my editorial adversaries. The *Sun* has clung to me for a dozen years, and to have it desert me now, is like the fatal stab of Brutus at Caesar. But I will forgive Moses S. Beach and John Vance of the *Sun* for their deep and unexpected gashes in my heart. Let all my friends be cheerful, when I inform them that neither sighs nor tears have passed from my lips or eyes, and that I only grieve at the official stabs at the liberty of speech and of the press, which the people will be sure to avenge, and soon consign the Grand Jury Inquisitions to the Spanish despots, and all their advocates to an ignominious destiny.

STEPHEN H. BRANCH.

OPINIONS OF THE PRESS.

[From the N. Y. Express.]

THE BRANCH LIBEL CASE.—Stephen H. Branch has been convicted of a gross and malicious libel upon Mayor Tiemann, Simeon Draper, and Isaac Bell, and has been sentenced to be imprisoned in the penitentiary for one year, to pay a fine of \$250, and stand committed until that sum shall be paid. The scene at the closing of the Court on Wednesday was a very melodramatic one, and fully in keeping with all the previous steps in this extraordinary case. Mr. Branch being asked what he had to say why sentence should not be pronounced against him, made a long speech, in which he reviewed the various events of his somewhat eccentric life; but just as he commenced to allude to the libels, and to speak thereon and the persons aggrieved, the court stopped him. The prisoner bore himself with the air of a martyr to the cause of public virtue, and said it was the happiest and proudest day of his life; but his excitement at the close of his address was very great, and his delivery vehement and earnest almost to weeping. The court was full of his sympathizers, who did not scruple to say that they believed the convict to be more sinned against than sinning.

This extraordinary case will long be remembered. The libels published and circulated by Mr. Branch were the most outrageous ever perpetrated in this city, and the prosecution has been in keeping with the provocation, amounting in its virulence almost to a persecution. Circumstances on the trial favored the presumption that the whole of the proceedings had been decided upon in advance, even to the wording of the recorder's charge and sentence. His honor himself informed the counsel for the prisoner that he had considered his possible application for a suspension of judgment, had examined the point, and had made up his mind that such a motion could not

be allowed. Every precaution had been taken. The whole power of the corporation—executive, legal, judicial—was invoked to annihilate Mr. Branch, and the end was attained. The offence was outrageous, and will admit of no palliation; but it was hardly good taste in the powerful complainants to take every advantage of a criminal whom many believe to be a monomaniac, and by the extreme vindictiveness of the prosecution, give to the administration of public justice the appearance of private revenge.

The arguments in the case were worthy of the best days of the criminal bar of New York. Mr. Ashmead distinguished himself highly in his appeal for the prisoner, and had the case gone to the jury before the cool and dispassionate reasoning of Mr. McKeon had partially weakened the effect of Mr. Ashmead's eloquence, the result might have been different. The charge of the Recorder was decidedly against the prisoner, and his sentence, it will be seen, was severe in its terms to an excess that was not called for. The punishment imposed was the extent of the law, and was by no means disproportioned to the offence; but it was entirely gratuitous on the part of the Recorder to drag into his remarks matters extraneous to the issue, and not at all connected with the present trial. The Recorder's announcement of the rod he has in pickle for certain other libellers who he intimates are shortly to be tried, will probably put those prospective culprits upon their guard, and they will at least have this advantage over Mr. Branch that they will not be taken unawares.

We congratulate the distinguished citizens whose characters have been cleared again by this conviction of Mr. Branch; but can assure them that their fair fame by no means suffered so much from the attacks of the "ALLIGATOR" as they presumed that it did.

We understand that Mr. Ashmead will to-day prepare a bill of exceptions, and move in the Supreme Court for a writ of certiorari and stay of proceedings. The bill will not be settled until late in the day, and the motion in the Supreme Court cannot be made until to-morrow. In case, therefore, that Mr. Branch should be sent to Penitentiary to-day, the motion will not avail him. It is hardly to be presumed that when a motion for arrest of judgment was denied without argument, the prisoner will be allowed time to benefit by an appeal to the Supreme Court.

[From the N. Y. Tribune.]

STEPHEN H. BRANCH was yesterday convicted of a gross libel on Mayor Tiemann and others, and sentenced by the Recorder to the Penitentiary for one year, and to pay a fine of \$250. Considering that the libel, however groundless essentially, appears to have had a real foundation in statements made to Branch by persons whom he undoubtedly believed, and whom his counsel had ready to produce (but their testimony was not allowed), we must consider this sentence a severe one. We believe it will excite for him a sympathy which it is unwise to provoke. Branch, we believe, has been trying pretty hard to libel *us* in his abusive little sheet; but we have never considered his slanders worth any sort of notice. It may be well to stop his career, but not to make him a martyr. And we say most decidedly, that considering the libel for which he was indicted was really based on information furnished him by persons whom he had reason to believe, we deem his sentence a harsh one, and trust it may be mitigated by pardon.

[From the New York Times.]

The verdict and the sentence startled a great many people. BRANCH was immediately surrounded by a troop of friends, who nearly shook his hands off with their greetings. He was followed to the Tombs by a large crowd, who only left him at the gates of that edifice. But though incarcerated in prison, we have not as BRANCH says, heard the last of BRANCH.



ALLIGATORS.

PANAMA, New Granada, }
Jan. 7, 1849. }

JAMES GORDON BENNETT,
Editor of the N. Y. Herald:

When three miles from Panama, I saw two spires of the largest and most imposing cathedrals here—larger than any church in America. On either side I beheld the Cordileras and the Andes, towering high up towards the glorious sun—the Cordileras connecting the Andes with the Rocky Mountains. As you near the city, you are gradually lead upon a beautifully paved road—paved by Pizzaro, the fiend, under whose superintendence the path from there to Cruces was made, through which Pizzaro, with his terrible banditti, often passed. On entering the city, the natives outside the gates were singing and dancing merrily in honor of some festival. Boys were flying their kites on the road, which they seemed to enjoy like the youth of all countries. There kites were made in the form of a coffin, and fringed on the sides with a very curious tail, partially resembling a rattlesnake. The more genteel natives wore white dresses and Panama hats. These hats are not made in Panama, but at St. Helena, and other places on the coast, which was news for me. Panama contains an impoverished population, whose leading maintenance is a few merchants of very little energy, who deal in British drillings and manufactures of various kinds. There are some choice relics of the old Castilians who are never seen in the streets by day, but who walk in their rear balconies in the evening to inhale the tropic air. The female Castilians are as beautiful as the Georgians or Circassians, and will not recognize the common natives, nor even the English or Americans, nor the aristocracy or nobility of any country as their

equals. I had the fortune, through influential letters to a large mercantile house here, to get an introduction to a Castilian family, and I was invited to a rural gathering of the friends and relatives of this family. The loveliest girl I ever saw is the daughter of the gentleman who is at the head of the family. To attempt a description of her accomplishments and extraordinary personal fascinations, would be as impossible as to describe the horrors of a trip up the Chagres, and especially the defile from this to Cruces, which still haunts, and will haunt me for a long period. The best description I can convey to my countrymen of the river Chagres, is its comparison with the river Styx, and you can form a slight conception of the defile between this and Cruces by its comparison with purgatory, as described by an illiterate and boisterous parson; and you can appreciate the loveliness of this Castilian female, by fancying that she is the very prototype of the unearthly Cleopatra, the accomplished and captivating queen of ancient Egypt, who was familiar with all the dialects of the East (thirty in number), whose glowing eloquence and brilliant eye, and majestic form, and perfect symmetry of mind and body and feature, only could have allured the eloquent, rich, and noble Anthony from his ambition of military glory and his love of his native country. The Cathedral is dingy and very gloomy. All the bells are cracked, and their doleful tones thrill the senses. I saw the leading priest to-day, who seems very old and infirm. In front of the Cathedral, are the Twelve Apostles, with the Saviour. The spires are adorned with pearls, with which the coast abounds. I have visited the temples, jails, walls, churches, old governors' palaces and trenches, and my heart was filled with pensive emotions, as I gazed on these crumbling ruins of other generations. The best idea I can give about this place, is its comparison with New York, after the great fires of 1835 and '46. The tortures and mode of life here are very peculiar. I slept on a bare cot, and with only one sheet over me—sweat like blazes. The meats and cooking are extremely novel. Lizzards, spiders, musquitoes, galinippers and ants, crawl around and over me, and often penetrate the ears and nose. Some lizzards gathered around my head the other night and awoke me, which I scattered very quick. I think they were preparing to play some trick on me, and perhaps even contemplated the decapitation of my beloved proboscis, as one of the rascals was smelling around my nostrils when I suddenly awoke. I hate lizzards, but I can stand spiders and alligators, and the other animalculae of the country tolerably well. A girl only ten years of age was

married to-day. This seems incredible, but you may repose implicit confidence in its truth. Females mature more rapidly here than in any other part of the earth. At eight and nine there is often every indication of puberty. I saw the young "lady" of ten, who was married to-day. I was utterly astonished at her prodigious maturity. She was extremely beautiful, and her glances were bewitching, and she seemed very devoted to her young and enthusiastic lover. It rains or pours in these latitudes ten months in the year, which the natives call the wet season. The other two months are called the dry season, when it only rains about twelve times a day. The lightning is sometimes incessant, and the thunder is terrific and makes the alligators look glassy about the eye. We had a shock of an earthquake last night which lasted some seconds. It created quite a sensation among the emigrants, but it did not terrify the natives, as they are used to earthquakes. A small lizzard crawled into the ear of an emigrant, who lives near the shore, which nearly killed him. I attended the Cathedral this morning, and the music and ceremonies were grateful to my heart. After the solemn scenes of last week, and the death of a beloved friend on Tuesday last. The attendance was not large. Youth, age, decrepitude, competence, affluence, penury and utter rags, all knelt side by side. Six priests of various grades were present. As I gazed on these splendid ruins, at the images, paintings and costly decorations, and grasped a retrospect of the long line of generations of Spanish nobility who had worshipped in its sacred aisles, and gazed down to the sepulchres of their fathers, contrasting this dismal structure with its tottering walls and spires, with its ancient glory, and as I gazed on its wildness and dilapidated magnificence, I was impressed with the most solemn and overwhelming emotions. Last evening I visited the ramparts, that encircle a portion of the city. The work is truly beautiful and exhilarating at early twilight, when the burning sun is gone, and when, as in last evening, the full moon was emerging with uncommon splendor from the far horizon of a tranquil sea. A group of lovely children just passed my window, followed by their slaves, with gorgeous turbans clad in red, white and blue. A passenger just entered my apartment and informs me that while dozing in his canoe on the banks of the Chagres, he was suddenly aroused from his slumber and saw an enormous alligator crawling over the base of his canoe, when he sprang and leaped to the shore and ran for his life up the embankment with the alligator in hot pursuit, which nearly caught him by the tail of his coat. He rushed into the hut of a friendly native, and closed

and barred the door, and flew to the roof, where he found piles of stones for defensive operations, and immediately opened a battery of flying stones at the alligator, causing him to retreat and disappear beneath the waters of the Chagres. There are turkey buzzards in countless thousands hovering over the city, which greatly alarm the natives. Such flocks were never seen before. The timid and superstitious natives predict the most awful visitations from the sudden appearance of so many buzzards, which darken the air like a cloud with their hideous presence. Some of the natives prognosticate a famine, or others fatal convulsions of nature. My chum predicts extraordinary heat (theremometer now about 100 in the shade), and a shower of rain (only rained six times to-day,) and other calamities. But I do not fear these terrible disasters from the advent of large flocks of turkey buzzards, as I have been taught to scout every thing in the form of representation.

STEPHEN H. BRANCH.



AN IMMORTAL PETITION.

The Wise Peter Cooper, and his most extraordinary proposal of a Tank on the summit of the City Hall, for the extinguishment of disastrous conflagrations.

[Document No. 13.]

BOARD OF ALDERMEN, }
February 6, 1854. }

The following petition of Peter Cooper, in relation to the prevention and extinguishing of fire, and to give greater efficiency to the Police Department, was received and laid on the table and ordered to be printed.

D. T. VALENTINE,
Clerk.

To the Hon. the Mayor and Common Council of the city of New York.

The subscriber takes this method to present to your Hon. Body, certain improvements for the prevention and extinguishing of fires, to give greater efficiency to the police and greatly lessen the labors of the Fire Department, and at the same time give greater security to life and property, and the government of our city.

Your subscriber is of the opinion, that these improvements will, if adopted, result in great benefit to the City, State and Nation.

A good government in this city, like the heart of a great body, will make itself felt throughout our State, our Nation, and to some extent throughout the world. Desiring greatly to secure for my native city, the inestimable blessings of good government I have ventured to propose and urgently

recommend, to the serious consideration of your Hon. body, a plan founded on a principle, that I believe will do more to bring about security, order and good government, than any and all other measures, that are within the range of our municipal powers, to adopt. The plan and principle to which I allude, will make it directly the dollar and cent interest, of some three-quarters of all the officers in the employ of the city government to faithfully perform their duty.

If this can be shown to be conveniently practicable, it must be admitted that it would bring about greater efficiency in the execution of all useful laws and ordinances, than any other means which have ever been applied to the government of our city.

Before I attempt a description of this plan, I will state that it will require greater conveniences for the extinguishment of fires than those now provided by our present arrangement.

The necessary facilities for conveniently putting out fires, can be arranged in a short time and at comparatively small expense, by placing a boiler-iron tank of some thirty feet in height, on the top of the present reservoir on Murray Hill. This tank to be filled and kept full of water by a small steam engine provided for that purpose.

And as an additional security I would propose that the present City Hall be raised an additional story, and covered with an iron tank that would hold some ten feet of water. The outside of this tank to be made to represent a cornice around the building.

If an additional building should be put up, to take the place of the one lately destroyed by fire, it should be so formed as to be in harmony with the present City Hall, and covered with a similar tank, and corniced to correspond. With this greater head and supply of water always at command, and ready for connection with the present street mains, the moment the signal is given from any Police Station, it will be apparent that all the hydrants will be made efficient to raise water over the tops of the highest houses in the city.

I would, in addition propose, that there should be placed at convenient distances in every street, a small cart containing some three hundred feet of hose. These carts should be so light that one man could draw them to the nearest hydrant to the fire, and bring the water on the fire in the shortest possible time. With this arrangement, I propose to make it the interest of

every man in the police, to watch against incendiaries and thieves, and to use every possible effort to extinguish fires as soon as they occur. To make it the interest for the police to perform their duty faithfully, I propose that the Corporation should set apart as a fund, two shillings per day, in addition to the wages of each man, to be held by the Corporation to the end of each year, and when it shall be ascertained that the loss and damage by fire, and the loss of property stolen, shall have been reduced below the average of the last ten years, then this fund of two shillings per day, in addition to their former wages, shall be equally divided between the men forming the Police Department.

In addition to this I propose that the Corporation should request all the Insurance Companies interested in the property of this city to bid or offer the largest per centage that they are willing to give on all, that the loss and damage by fire can be reduced below the average agreed upon.

This fund to be added to the Corporation fund of two shillings per day, and to be equally divided with the men forming the City Police.

This would enable every one of the members of the police to secure for himself sufficient to pay his rent every year over and above his present wages. They would also have the elevating satisfaction of knowing that while they are saving one dollar for themselves they are saving fifty dollars for the community, and in addition saving thousands of individuals from that wretchedness and misery annually produced by the desolating ravages of fire.

A police appointed for and during good behavior, with the liberal salary they now receive, and with the additional privilege of securing to themselves annually so large an amount over and above their regular salaries might always be relied on to forward every measure that would tend to secure order and good government. A department so formed, whose duty it would be to traverse every street of the city by day and night, would find it their interest as well as duty to watch against incendiaries, and when a fire was discovered they would instantly signal for as many hose carts as desirable, with directions for every next man to double his walk. When such men come to a fire they would all be armed with police powers to protect property, and to bring and use the carts with hose on the fire, until the general alarm became necessary to summon the firemen to the charge, which would seldom happen with such facilities and such an interest to

extinguish fires. One of the best features in this arrangement will be the constant tendency and interest there will be to draw into the department good men and crowd out bad men. They find it their interest to have every man turned out who is either drunken, idle or dishonest, and to have in their place those that are sober, honest and efficient. They find it their interest to close every rum shop that is selling without license, and they will not be long in finding out that a large part of the fires arise from drunkenness and the degradation and carelessness that are the natural results of dissipation.

[Conclusion in our next.]



☞ Owing to an unusual amount of matter in this number, we have omitted our advertisements. They will be inserted in next issue.

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SAMUEL SNEDEN.

*** END OF THE PROJECT GUTENBERG EBOOK STEPHEN H.
BRANCH'S ALLIGATOR, VOL. 1 NO. 17, AUGUST 14, 1858 ***

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